

4. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PROD OF DOCS**
AGAINST HCR IV HEALTHCARE
FILED BY: CANNON, REGINALD R.
TENTATIVE RULING:

This motion was withdrawn by Plaintiffs.

5. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF**
DOCS AGAINST DEFS
FILED BY: CANNON, REGINALD R.
TENTATIVE RULING:

Plaintiffs Reginald Cannon et al. bring this Motion (1) to Compel Further Responses to Requests for Production; (2) to Compel Production of Documents; (3) to Compel Verifications; and (4) for Monetary Sanctions Against Defendants Manor Care of Walnut Creek CA LLC (Manor Care), HCR Manor Care Services, LLC (HCR Manor Care), Promedica Employment Services, LLC (PES), and Promedica Health System, Inc. (PHS). All four Defendants filed oppositions.

Background

This is an elder abuse case with several defendants. This is one of originally seven—six after the withdrawal of one motion by Plaintiffs—discovery motions filed in this matter. The Court ruled the week prior on the first three to be heard.

On November 27, 2024, Plaintiffs served their RFPs on Defendants. At that time, all relevant Defendants were represented by a single law firm. After a negotiated extension, Defendants jointly served unverified responses to Plaintiffs' RFPs on February 7, 2025. Throughout 2025, Defendants continued to serve unverified supplemental responses. Plaintiffs sent meet and confer correspondence during that time. There is no evidence before the Court that Defendants at any time sent any response correspondence.

On January 28, 2026, at a Case Management Conference, the Court heard from the parties that there was voluminous discovery and that new counsel intended to supplement the discovery. The Court requested further meeting and conferring, noting that it did not wish to prepare for a motion that was mooted. The Court stated that the service of amended responses "doesn't mean you're entitled to sanctions, but they don't automatically go off calendar, but I would like the parties to meet and confer as much as they possibly can and see if ahead of the hearing you can communicate to the court any kind of at least narrowing of the issues."

On October 1, 2025, Plaintiffs filed the instant motion. On October 13, 2025, current counsel for HCR Manor Care and PHS substituted in. Manor Care and PES retained prior counsel. On March 6, 2026, PHS served verified amended responses to the Requests for Production of Documents. On March 6,

HCR Manor Care served amended responses to the Requests for Production of Documents, with a verification served on March 10. All four relevant Defendants filed oppositions on March 6, 2026. The Court is unaware of any additional meeting and conferring that took place between January 28 and today.

Analysis

Mooting of the Motion

HCR Manor Care and PHS claim that service of verified amended responses renders this Motion moot. These verified amended responses were served over one year after the initial responses, five months after new counsel substituted in, and either the day of or four days after the opposition to the Motion was filed. While the request for verifications is now a moot issue with respect to those two defendants, there remain several issues to be discussed. The verifications were untimely, rendering the substantive answers untimely. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 (“Unsworn responses are tantamount to no responses at all.”).) “In many cases involving untimely responses, the propounding party will take the motion off calendar or narrow its scope to the issue of sanctions. If the propounding party proceeds with the motion, however, the trial court has the discretion to rule on the motion.” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409.) The Court will address all ripe and relevant issues.

Timeliness of the Motion

PES and Manor Care claim that the motion is premature because Plaintiffs have never received verified responses. PES and Manor Care may not indefinitely prevent Plaintiffs from receiving discovery by failing to submit verifications and declaring any resulting motions premature. A reasonable time has come and gone, and verifications are significantly delinquent. The requirement that a Motion to Compel may only be filed after service of verified responses does not apply to this Motion.

Verifications

The Defendants’ responses must be verified. Code Civ. Pro. § 2031.250. Manor Care and PES remain unverified as of this date. HCR Manor Care and PHS are recently amended. Plaintiffs’ request for verified responses is therefore moot with respect to those two Defendants.

Waiver of Objections

Plaintiffs initially sought to compel verified answers without objection, arguing that the lack of timely verifications waived HCR’s right to assert objections. This is not correct. As Defendants indicate, where objections and substantive responses are served simultaneously, timely objections are not waived. (*Food 4 Less Supermarkets, Inc. v. Superior Court (Fletcher)* (1995) 40 Cal.App.4th 651, 657-658 (“Defendants did serve their responses within the statutory time period. The lack of verification did not render their objections untimely.”). Plaintiffs appear to concede this point. The Court will not order new responses without *any* objections.

Responses

In response to RFP Nos. 2-5, 22, 25, 28, 30-40, 61, 63, 66, 69, 72, 75-80, 86-116, and 119-48, Defendants HCR Manor Care and PHS claim that they are unable to comply or to comply fully because some or all responsive documents are “lost,” “destroyed,” or “never existed.” In their brief, these Defendants explain that they never had these documents because they were too attenuated from the facility—HCR Manor Care as an “administrative support entity” and PHS as an “indirect parent company of the Facility.”

Code of Civil Procedure 2031.230 states:

A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.

Defendants did not comply with this obligation. Given that they are or were affiliated with the facility and any entity that may have had these documents, it is not beyond their ability to attempt to answer *or to state why* they cannot answer. It remains unclear to the Court whether these companies indeed do not have *control* over any of the documents despite their lack of *possession or custody*, but if that is truly the case, at the minimum they must amend these answers to comply fully with their statutory discovery obligations.¹

Specific Objections/Responses

HCR Manor Care and PHS have amended their discovery responses and it is not clear whether they are still retaining certain objections or whether the following issues remain live therefore only with respect to Manor Care and PES. HCR Manor Care and PHS did not include any responses to these issues in their opposition brief, so it appears they concede the point. The Court will address the disputed objections.

RFP 19 – Evidence Code §§ 1151, 1157

In response to RFP No. 19, which requests “incident reports related to Decedent created during his residency at the subject Facility,” Defendants object that the request “seeks information that is not subject to discovery under Evidence Code § 1151 and 1157.”

Plaintiffs are correct that Evidence Code section 1151 relates to admissibility, not discovery. (*Bank of*

¹ Plaintiffs also argue that “Defendants do not explain why their sale of the Facility would cause documents predating the sale and responsive to Nos. 3, 4, 31, 35, 36, 39, 87, 90, and 91 to become lost or destroyed, particularly when Defendants produced documents that predate the sale in response to Nos. 3, 4, 35, 37, 39, 87, 90, and 96.” This is a subsidiary question to the one immediately above and only is relevant if there *was* control over these documents.

the Orient v. Superior Court (1977) 67 Cal. App. 3d 588, 598-599 (“[T]he section is a prohibition on the admissibility of evidence at trial. It does not purport to limit the scope of discovery.”).)

The Court received no argument from any Defendant regarding how the requested documents are not subject to discovery or fit within the narrow protection of Evidence Code section 1157. (*Matchett v. Superior Court* (1974) 40 Cal.App.3d 623, 627.) Responsive relevant documents must be produced.

RFP Nos. 27, 28, 30, 31, and 40 – Civil Code § 3295

RFP Nos. 27, 28, 30, 31, and 40 seek various contracts with third parties, including “management agreements” for the Facility, contracts for consulting services to patients, contracts with nurse staffing agencies, contracts between the Facility and ancillary service providers, and corporate integrity agreements entered into on behalf of the subject facility with the government. Defendants objected that the requests seek documents “protected from discovery under Civil Code § 3295.” Civil Code section 3295 protects defendants from discovery relating to punitive damages (Civ. Code § 3294) on “[t]he profits the defendant has gained by virtue of the wrongful course of conduct of the nature and type shown by the evidence” and “[t]he financial condition of the defendant” prior to plaintiff producing evidence of a prima facie case of liability for damages. That is not the aim of the discovery requests at issue here. Responsive relevant documents must be produced.

RFP 37

HCR Manor Care and PHS discuss RFP No. 37, which was not identified in Plaintiffs’ MPA but was addressed in the Separate Statement. At this point, it appears board minutes were produced and Defendants seek to claw them back. The Court does not have before it a procedurally appropriate vehicle for that request. So while it will not compel additional production on this request, it will also take no different further action.

RFP Nos. 27, 28, 30, 31, and 40 -- Privacy Objection.

Defendants raise a privacy objection in response to RFP Nos. 27, 28, 30, 31, and 40, which seek agreements between Defendants and other business 16 entities and the government. There is no support provided in any of Defendants’ briefing for such an assertion.

RFP Nos. 2-5, 19, 22, 25-28, 30-40, 61, 63, 66, 69, 72, 75-80, 86-116, and 119-48 –Boilerplate Objections.

Plaintiffs also complain of boilerplate objections. Although all parties are aware of the disfavored status of boilerplate and misplaced objections, it is not clear to the Court that any documents have actually been withheld on the basis of these objections, so there is nothing for the Court to do at this point. Any supplemental responses must fully comply with section 2031.240(b).

Supplementing Answers

By natural function of Defendants HCR Manor Care and PHS serving amended responses contemporaneously with their oppositions to this motion, there are now new issues that Plaintiffs have addressed in their reply. To the best of the Court’s understanding, this arises because the prior unverified responses were joint responses with Manor Care and PES, and the new separate responses

are served by each separate entity. In the course of that amendment, HCR Manor Care and PHS have asserted new objections (which will be addressed immediately below) and provided *fewer* responses than previously, claiming that they are entities without the relevant documents held by the subsidiaries. While Plaintiffs cannot seek remedy for Manor Care’s non-compliance with its verification obligations by insisting that an entity without knowledge provide documents it does not have, it is also true that Defendants cannot pretend to lack documents simply because a subsidiary is in actual possession of those documents. What is not clear to the Court at this stage is where the answers to each of these questions lies with respect to various types of information. In other words, there are certainly areas where HCR Manor Care and PHS plausibly cannot respond to RFPs, but there are also areas where—by way of contracts, statutory obligations, or corporate structure—HCR Manor Care and PHS *do* have possession, custody, or *control* of responsive documents. At this point, the breadth of the dispute is far too wide for the Court to address it piece by piece. Moreover, it does appear that Plaintiffs have been attempting to take depositions that would address corporate structure and responsibility since August 2025 and have a motion set for April 2, 2026 on that very matter. Defendants’ failure to provide knowledgeable deposition witnesses has prolonged and stymied this area of discovery. Defendants must provide relevant documents in their possession, custody, or control.

Newly Asserted Objections by PHS and HCR Manor Care

Finally, Defendants HCR Manor Care and PHS appear to assert new objections in their amended responses. They have provided no authority for them to do so at this belated stage. It is again, however, not clear whether these objections serve as the basis for any withheld documents. To the extent they do, absent some compelling showing from HCR Manor Care and PHS, they have been waived.

Delinquent Production

Plaintiffs also seek documents that were promised in response to RFP Nos. 3, 28, 38, and 118. After change in counsel and amendments by HCR Manor Care and PHS, it now appears that those Defendants claim not to have any of the documents responsive to these requests—with the exception of RFP NO. 38 (their respective Articles of Incorporation), which they state they will produce. This issue was addressed above. The issue remains live for PES and Manor Care.

RFP No. 3 seeks the “audit trail” for electronic documents produced in response to RFP No. 1, which in turn sought the decedent Kenneth Cannon’s “certified legal records.” Plaintiffs state that Defendants did not produce any documents from 2024. There is no justification given for this failure, and the documents must be produced.

RFP No. 28 seeks written agreements between the responding party and “any individual or entity providing consulting services to patients” of the facility. Defendants did not produce any written agreements that included PES or PHS. According to Defendants’ filings, it would appear that PHS did not have such written agreements. There is no response regarding PES in any of the briefing; relevant responsive documents must be produced.

RFP No. 38 seeks the responding party’s Articles of Incorporation. Plaintiffs report that Defendant

Manor Care failed to comply. Those documents must be produced.

RFP No. 96 seeks “Custom Time Detail Reports for employees working at the SUBJECT FACILITY from July 14, 2019 until July 14, 2023.” Manor Care only produced responsive documents for the brief period decedent Kenneth Cannon was at the facility. Absent a compelling reason for restricting this production—and none was offered—Manor Care must supplement the production to meet the request.

RFP No. 118 seeks “all PEPPER Reports prepared on behalf of the SUBJECT FACILITY from July 14, 2019 to July 14, 2023.” Plaintiffs state that Defendants only produced PEPPER Reports for a portion of the time. There is no justification for the failure to produce the entire period and responsive relevant documents must be produced.

In response to RFP No. 96, Defendant ManorCare of Walnut Creek CA, LLC only produced documents from the precise period during which Kenneth was a resident at the Facility. There is no justification for the failure to produce the entire period and responsive relevant documents must be produced.

Finally, Plaintiff complain that “Defendants produced documents in response to RFP Nos. 3, 4, and 100 that are not in their native Excel format and are practically unusable in the produced PDF format.” “Unless the parties otherwise agree or the court otherwise orders,” a “responding party shall produce the information in the form or forms in which it is ordinarily maintained or in a form that is reasonably usable.” CCP § 2031.280(d)(1). PHS and HCR Manor Care state that they do not have such documents. Any Defendant who has *access* to the relevant documents in their native format must produce them.

Sanctions

Under Code of Civil Procedure section 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Section 2023.020 states that the Court “**shall** impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” Additionally, section 2031.300 provides that the Court “**shall** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

One of the basic purposes for imposing sanctions is to compel disclosure of discoverable information. See, e.g., *Marriage of Economou* (1990) 224 Cal.App.3d 1466, 1475 (court’s discretion to impose sanctions “must be exercised in a manner consistent with the basic purposes of such sanctions: to compel disclosure of discoverable information”); *Kaplan v Eldorado Ins. Co.* (1976) 55 Cal.App. 3d 587, 591 (discovery sanctions enable party “to obtain evidence in the control of his adversary in order to further the efficient, economical disposition of cases according to right and justice on the merits”).

In keeping with this purpose, the proposed sanction should be “suitable and necessary” to enable the requesting party to obtain the object of its discovery. *Caryl Richards, Inc. v Superior Court* (1961) 188 Cal.App.2d 300, 304. See *Juarez v Boy Scouts of Am., Inc.* (2000) 81 Cal.App.4th 377, 388. Whatever penalty is imposed should be “appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” *Deyo v Kilbourne* (1978) 84 Cal.App.3d 771, 793. Sanctions are awardable to parties, not their attorneys. *Poe v Diamond* (1987) 191 Cal.App.3d 1394, 1399. The trial court may impose sanctions for a pattern of discovery abuse. It is not limited to imposing sanctions for each violation of the rules governing depositions or other discovery methods.

The Court finds that all four Defendants have been derelict in their discovery obligations, but to varying degrees and with varying involvement of counsel. Notably absent from the thousands of pages before the Court is any representation that *at any time*, any of the counsel for any of the Defendants met or conferred with Plaintiffs’ counsel. Service of amended responses *may* cure issues and moot the need for further meeting and conferring, but given the record before the Court, that does not appear to have been the case and it was counsel’s obligation to follow up. Sanctions shall be awarded as follows:

- (1) From Manor Care and PES, jointly with counsel Petrullo, APC: \$4,000
- (2) From HCR Manor Care and PHS and current counsel Buchanan Ingersoll & Rooney: \$2,565.
This particular sanction is stayed and will not be imposed *if* counsel for these Defendants, in good faith, participates in further meeting and conferring to resolve the issues raised above that are not wholly resolved by this order **in person at a location of Plaintiffs’ counsel’s choosing.**

6. 9:00 AM CASE NUMBER: C24-01854

CASE NAME: REGINALD CANNON VS. MELISSA KATZ

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS AGAINST DEFS**

FILED BY: CANNON, REGINALD R.

TENTATIVE RULING:

Plaintiffs Reginald Cannon et al. bring this Motion (1) to Compel Further Responses to Special Interrogatories; (2) to Compel Verifications; and (3) for Monetary Sanctions Against Defendants Manor Care of Walnut Creek CA LLC (Manor Care), HCR Manor Care Services, LLC (HCR Manor Care), Promedica Employment Services, LLC (PES), and Promedica Health System, Inc. (PHS). All four Defendants filed oppositions.

Background

This is an elder abuse case with several defendants. This is one of originally seven—six after the withdrawal of one motion by Plaintiffs—discovery motions filed in this matter. The Court ruled the week prior on the first three to be heard.

On December 5, 2024, Plaintiffs served their Special Interrogatories, Set 1 on Defendants. At that